

587, 594. Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Non-Opposition

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this Motion is a deemed to be Plaintiff’s consent to the granting of Discovery motions.

Ruling

Good cause appearing, the Court **grants** Defendant’s Motion to Compel responses to Discovery and will execute the proposed order lodged on June 6, 2025, attaching a copy of this tentative ruling.

17. 9:01 AM CASE NUMBER: C25-01094

CASE NAME: FRANKLIN CHERRY VS. CHARMAINE COLLADO

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSE FROM DEFENDANT
CHARMAINE C. COLLADO TO SPECIAL INTERROGATORIES, SET ONE**

FILED BY: CHERRY, FRANKLIN P.

TENTATIVE RULING:

This Motion was withdrawn by Plaintiff Franklin Cherry on November 12, 2025.